



YOUR CALIFORNIA PERSONAL AUTO POLICY QUICK REFERENCE

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IF YOU HAVE A PROBLEM

Please contact a MAPFRE agent or customer service representative at:

MAPFRE INSURANCE COMPANY

P.O. Box 6007

Gilbert, Arizona 85299-6007

Telephone (877) MAPFRE1 or (877) 627-3731

The California Department of Insurance maintains a Consumer Services Division to investigate consumer complaints at:

California Department of Insurance

Consumer Services Division

300 South Spring Street, South Tower

Los Angeles, California 90013

Telephone (Toll Free): 1-800-927-HELP

(4357)

[www.insurance.ca.gov/01-consumers/101-help/index.cfm]

The Department requests that you should only contact the Department of Insurance after contacts with the insurance company or its agent or other representatives have failed to produce a satisfactory solution to your problem.

CALIFORNIA PERSONAL AUTO POLICY

"Notice: Unless drivers residing with the Named Insured are named on the Declarations, coverage may not be afforded. If you desire coverage for drivers other than those shown, request us or your agent to have your policy amended to list additional drivers.

Warning: This policy does not provide coverage in Mexico. You may spend many hours or days in jail if you have an accident in Mexico without automobile insurance. This may include the impoundment of your automobile. If you drive in Mexico, you should secure coverage from an insurance company licensed to do business in Mexico."

AGREEMENT

In return for payment of all premiums, and in reliance upon the statements in the application and any renewal of this policy, we agree to insure you subject to the terms, conditions and limitations of this policy. We will insure you for the coverages and limits shown on the Declarations. Your policy consists of the policy contract, Declarations and endorsements applicable to the policy.

DEFINITIONS

- A.** Throughout this policy, "you" and "your" refer to:
1. The "named insured" shown in the Declarations; and
 2. The spouse if a resident of the same household. Throughout this policy, the term spouse includes an individual registered under California or other state law as a domestic partner of the "named insured" shown in the Declarations.
- If the spouse ceases to be a resident of the same household during the policy period the spouse will be considered "you" and "your" under this policy but only until the earlier of:
1. The end of 90 days following the spouse's change of residency;
 2. The effective date of another policy listing the spouse as a named insured; or
 3. The end of the policy period.
- B.** "We", "us" and "our" refer to the Company providing this insurance.
- C.** For purposes of this policy, a private passenger type auto, pickup or van shall be deemed to be owned by a person if leased:
1. Under a written agreement to that person; and
 2. For a continuous period of at least 6 months.
- D.** Throughout the policy "minimum limits" refers to the following limits of liability, as required by California law, to be provided under a policy of auto-mobile liability insurance:
1. \$30,000 for each person, subject to \$60,000 for each accident, with respect to "bodily injury" and
 2. \$15,000 for each accident with respect to "property damage".
- Other words and phrases are defined. They are in quotation marks when used.
- E.** "Bodily injury" means bodily harm, sickness or disease, including death that results therefrom.
- F.** "Business" includes trade, profession or occupation.
- G.** "Family member" means a person related to you by blood, marriage, registered domestic partner-ship under California or other state law or adoption who is a resident of your household. This includes a ward or foster child.
- H.** "Fungi" means any type or form of fungus, including yeast, mold or mildew, blight or mushroom and any mycotoxins, spore, scents or other sub-stances, products or byproducts produced, re-leased by or arising out of "fungi", including growth, proliferation or spread of "fungi" or the current or past presence of "fungi". However, this definition does not include any "fungi" intended by the "insured" for consumption.
- I.** "Occupying" means:
1. In;
 2. Upon; or
 3. Getting in, on, out or off.
- J.** "Property damage" means physical injury to, destruction of or loss of use of tangible property.
- K.** "Punitive or exemplary damages" include damages which are awarded to punish or deter wrongful conduct, to set an example, to fine, penalize or impose a statutory penalty, and damages which are awarded for any purpose other than as compensatory damages for "bodily injury" or "property dam-age".
- L.** "Trailer" means a vehicle designed to be pulled by a:
1. Private passenger auto; or
 2. Pickup or van;
- It also means a farm wagon or farm implement while towed by a vehicle listed in (1.) or (2.) above. It does not include a mobile home, or a trailer used as an office, store, display, or passenger conveyance.
- M.** "Volunteer services" means the operation or use of a "car" to provide social services transportation on

behalf of a:

1. Nonprofit charity; or
2. Governmental agency

without pay of any kind other than for actual mile-age driven at the maximum rate permitted by law.

N. "Your covered auto" means:

1. Any vehicle shown in the Declarations for coverages applicable to that vehicle.
2. A "newly acquired auto".
3. Any "trailer" you own.
4. Any auto or "trailer" you do not own while used as a temporary substitute for any other vehicle described in this definition which is out of normal use because of its:
 - a. Breakdown;
 - b. Repair;
 - c. Servicing;
 - d. Loss; or
 - e. Destruction.

This Provision (**N.4.**) does not apply to Cover-age For Damage To Your Auto.

O. "Newly acquired auto":

1. "Newly acquired auto" means any of the following types of vehicles you become the owner of during the policy period:
 - a. A private passenger auto; or
 - b. A pickup or van, for which no other insurance policy provides coverage, that:
 - (1) Has a Gross Vehicle Weight Rating of 14,000 lbs. or less and has an ISO Symbol; and
 - (2) Is not used for the delivery or transportation of goods and materials unless such use is:
 - (a) Incidental to your "business" of installing, maintaining or repairing furnishings or equipment; or
 - (b) For farming or ranching.
2. Coverage for a "newly acquired auto" is provided as described below. If you ask us to insure a "newly acquired auto" after a specified time period described below has elapsed, and we agree to provide such coverage, any cover-age we provide for a "newly acquired auto" will begin at the time you request the coverage.
 - a. For any coverage provided in this policy except Coverage For Damage To Your Auto, a "newly acquired auto" will have the broadest coverage we now provide for any vehicle shown in the Declarations. Coverage begins on the date you become the owner. However, for this coverage to

apply to a "newly acquired auto" which is in addition to any vehicle shown in the Declarations, you must ask us to insure it within 14 days after you become the owner.

If a "newly acquired auto" replaces a vehicle shown in the Declarations, coverage is provided for this vehicle without your having to ask us to insure it. However, the General Provisions section of this policy requires you to promptly notify us when you acquire a replacement vehicle.

- b. Collision Coverage for a "newly acquired auto" begins on the date you become the owner. However, for this coverage to apply, you must ask us to insure it within:
 - (1) 14 days after you become the owner if the Declarations indicate that Collision Coverage applies to at least one auto. In this case, the "newly acquired auto" will have the broadest coverage we now provide for any auto shown in the Declarations.
 - (2) Four (4) days after you become the owner if the Declarations do not indicate that Collision Coverage applies to at least one auto. If you comply with the 4 day requirement and a loss occurred before you asked us to insure the "newly acquired auto", a Collision deductible of \$500 will apply.
- c. Comprehensive Coverage for a "newly acquired auto" begins on the date you become the owner. However, for this coverage to apply, you must ask us to insure it within:
 - (1) 14 days after you become the owner if the Declarations indicate that Comprehensive Coverage applies to at least one auto. In this case, the "newly acquired auto" will have the broadest coverage we now provide for any auto shown in the Declarations.
 - (2) Four (4) days after you become the owner if the Declarations do not indicate that Comprehensive Coverage applies to at least one auto. If you comply with the 4 day requirement and a loss occurred before you asked us to insure the "newly acquired auto", an Comprehensive deductible of \$500 will apply.

- P.** "Transportation network platform" means an online-enabled application or digital network used to connect persons with drivers using vehicles for the purpose of providing prearranged transportation services for compensation.

PART A - LIABILITY COVERAGE

INSURING AGREEMENT

- A.** We will pay damages for "bodily injury" or "property damage" for which any "insured" becomes legally responsible because of an auto accident. Damages include prejudgment interest awarded against the "insured". We will settle or defend as we consider appropriate, any claim or suit asking for these damages. In addition to our limit of liability we will pay all defense costs we incur. Our duty to settle or defend ends when our limit of liability for this coverage has been exhausted by payment of judgments or settlements. We have no duty to defend any suit or settle any claim for "bodily in-jury" or "property damage" not covered under this policy.
- B.** "Insured" as used in this Part means:
- 1.** You for the ownership, maintenance or use of:
 - a.** "Your covered auto";
 - b.** Any private passenger auto or "trailer; or
 - c.** A pickup or van that:
 - (1) Has a Gross Vehicle Weight Rating of 14,000 lbs. or less and has no ISO Symbol; and
 - (2) Is not used for the delivery or transportation of goods and materials unless such use is:
 - (a) Incidental to you "business" of installing, maintain or repairing furnishings or equipment; or
 - (b) For farming or ranching.
 - 2.** Any person using "your covered auto" with your express or implied permission. The actual use must be within the scope of that permission.
 - 3.** For "your covered auto", any person or organization but only with respect to legal responsibility for acts or omissions of a person for whom coverage is afforded under this Part.
 - 4.** For any auto or "trailer", other than "your covered auto", any other person or organization but only with respect to legal responsibility for acts or omissions of you or any "family member" for whom coverage is afforded under this Part. This Provision **(B.4.)** applies only if the person or organization does not own or hire the auto or "trailer".

SUPPLEMENTARY PAYMENTS

We will pay on behalf of an "insured":

- 1.** Up to \$250 for the cost of bail bonds required because of an accident, including related traffic law violations. The accident must result in "bodily injury" or "property damage" covered under this policy.
- 2.** Premiums on appeal bonds and bonds to

EXCLUSIONS

- release attachments in any suit we defend.
- 3.** Interest accruing after a judgment is entered in any suit we defend. Our duty to pay interest ends when we offer to pay that part of the judgment which does not exceed our limit of liability for this coverage.
 - 4.** Up to \$200 a day for loss of earnings, but not other income, because of attendance at hearings or trials at our request.
 - 5.** Other reasonable expenses incurred at our request.

These payments will not reduce the limit of liability.

A. We do not provide Liability Coverage for:

- 1.** Any "insured" who intentionally caused "bodily injury" or "property damage" even if such "bodily injury" or "property damage" is of a different kind or degree than expected or intended, or such "bodily injury" or "property damage" is sustained by a different person or persons than expected or intended.
- 2.** "Property damage" to property owned or being transported by any "insured".
- 3.** "Property damage" to property:
 - a.** Rented to;
 - b.** Used by; or
 - c.** In the care of;any "insured".

This Exclusion **(A.3.)** does not apply to "property damage" to a residence or private garage.

- 4.** "Bodily injury" to an employee of that "insured" during the course of employment. This Exclusion **(A.4.)** does not apply to "bodily injury" to a domestic employee unless workers' compensation benefits are required or available for that domestic employee.
- 5.** "Bodily injury" to any fellow employee of the "insured" injured in the course of employment if the "bodily injury" arises out of the use of an auto in the "business" of the employer. This Exclusion **(A.5.)** does not apply to you with respect to "bodily injury" sustained by any fellow employee.
- 6.** Any "insured" for that "insured's" liability arising out of the owner-ship or operation of a vehicle while it is being used as a public or livery conveyance. This includes but is not limited to any period of time a vehicle is being used by any "insured" who is logged into a "transportation network platform" as a driver, whether or not a passenger is "occupying" the vehicle.

This exclusion **(A.6.)** does not apply to share-the-expense car pool or when providing "volunteer services".

7. Any "insured" using any vehicle while employed in the pickup or delivery of newspapers or magazines, food or any products for the purpose of compensation.
8. Any "insured" while employed or otherwise engaged in the "business" of:
 - a. Selling;
 - b. Repairing;
 - c. Servicing;
 - d. Storing; or
 - e. Parking;

vehicles designed for use mainly on public highways. This includes road testing and delivery. This Exclusion **(A.8.)** does not apply to the ownership, maintenance or use of "your covered auto" by:

- (1) You;
- (2) Any "family member"; or
- (3) Any partner, agent or employee of you or any "family member".

9. Any "insured" maintaining or using any vehicle while that "insured" is employed or otherwise engaged in any "business" (other than farming or ranching) not described in Exclusion **(A.7.)** or **(A.8.)**. This Exclusion **(A.9.)** does not apply to the maintenance or use of a:

- a. Private passenger auto;
- b. Pickup or van; or
- c. "Trailer" used with a vehicle described in **(A.9.a.)** or **(A.9.b.)** above.

10. Any "insured" using a vehicle without the express or implied permission of the owner or other person having lawful possession, or using a vehicle beyond the scope of the permission granted. However, this exclusion **(A.10.)** does not apply to a "family member" using "your covered auto".

11. "Bodily injury" or "property damage" for which that "insured":
 - a. Is an insured under a nuclear energy liability policy; or
 - b. Would be an insured under a nuclear energy liability policy but for its termination upon exhaustion of its limit of liability.

A nuclear energy liability policy is a policy is-sued by any of the following or their successors:

- a. Nuclear Energy Liability Insurance Association;
- b. Mutual Atomic Energy Liability Underwriters; or
- c. Nuclear Insurance Association of Canada.

12. "Bodily injury" to you or any "family member" whenever the ultimate benefits of that

indemnification accrue directly or indirectly to you or any "family member."

13. "Punitive or exemplary damages" awarded against any "insured".
14. "Bodily injury" or "property damage" arising out of the use of "your covered auto" while leased or rented to others. However, this exclusion does not apply to the operation of "your covered auto" by you or a "family member".
15. "Bodily injury" or "property damage" arising out of a criminal act or omission of the "insured". This exclusion applies regardless of whether that "insured" is actually charged with, or convicted of, a crime. However, this exclusion **(15.)** does not apply to traffic violations.
16. Any liability assumed by an "insured" under any contract or agreement.

B. We do not provide Liability Coverage for the ownership, maintenance or use of:

1. Any vehicle which:
 - a. Has fewer than four wheels; or
 - b. Is designed mainly for use off public roads.This Exclusion **(B.1.)** does not apply:
 - a. While such vehicle is being used by an "insured" in a medical emergency;
 - b. To any "trailer"; or
 - c. To any non-owned golf cart.

2. Any vehicle, other than "your covered auto", which is:
 - a. Owned by you; or
 - b. Furnished or available for your regular use.
3. Any vehicle, other than "your covered auto", which is:
 - a. Owned by any "family member" or other person who resides with you; or
 - b. Furnished or available for the regular use of any "family member" or other person who resides with you.

However, this Exclusion **(B.3.)** does not apply to you while you are maintaining or "occupying" any vehicle which is:

- a. Owned by a "family member"; or
 - b. Furnished or available for the regular use of a "family member".
4. Any vehicle while participating in, or competing in, or practicing or preparing for any organized or pre-arranged or spontaneous racing, speed or demolition contest, drag racing, or stunting activity.

C. To the extent that the limits of liability for this coverage exceed the minimum limits of liability required by the financial responsibility law of the state in which "your covered auto" is principally garaged, we do not provide Liability Coverage for

any "insured":

1. While operating a vehicle if that "insured" is a "family member" or other person who is a resident of your household, unless you have notified us before the accident that such "family member" or person is an operator.

LIMIT OF LIABILITY

- A.** The limit of liability shown in the Declarations for each person for Bodily Injury Liability is our maximum limit of liability for all damages arising out of "bodily injury" sustained by any one person in any one auto accident. Subject to this limit for each person, the limit of liability shown in the Declarations for each accident for Bodily Injury Liability is our maximum limit of liability for all damages for "bodily injury" resulting from any one auto accident.

Except as otherwise provided by law, the "each person" limit of liability applies to the total of all claims made for "bodily injury" to a person and all claims of others derived from such "bodily injury", including, but not limited to, emotional injury or mental anguish resulting from the "bodily injury" of another or from witnessing the "bodily injury" to another, loss of society, loss of companionship, loss of services, loss of consortium, and wrongful death.

The limit of liability shown in the Declarations for each accident for Property Damage Liability is our maximum limit of liability for all "property damage" resulting from any one auto accident.

These limits are the most we will pay regardless of the number of:

1. "Insureds";
 2. Claims made;
 3. Vehicles or premiums shown in the Declarations;
 4. Vehicles involved in the auto accident; or
 5. Lawsuits brought.
- B.** No one will be entitled to receive duplicate payments for the same elements of loss under this coverage and:
1. Part **B** – Medical Payments Coverage or Part **C** – Uninsured Motorists Coverage of this policy; or
 2. Any Underinsured Motorists Coverage provided by this policy.
- C.** A vehicle and attached "trailer" are considered one vehicle. Therefore, the limits of liability will not be increased for an accident involving a vehicle which has an attached "trailer".

OUT OF STATE COVERAGE

If an auto accident to which this policy applies occurs in any state or province other than the one in which "your covered auto" is principally garaged, we will interpret your policy for that accident as follows:

- A.** If the state or province has:
1. A financial responsibility or similar law specifying

limits of liability for "bodily injury" or "property damage" higher than the limit shown in the Declarations, your policy will provide the higher specified limit.

2. A compulsory insurance or similar law requiring a nonresident to maintain insurance whenever the nonresident uses a vehicle in that state or province, your policy will provide at least the required minimum amounts and types of coverage.
- B.** No one will be entitled to duplicate payments for the same elements of loss.

FINANCIAL RESPONSIBILITY

When this policy is certified as future evidence of financial responsibility, this policy shall comply with the law to the extent required.

OTHER INSURANCE

If there is any other applicable liability insurance or evidence of financial responsibility on a loss covered by this Part:

1. Any insurance we provide for a vehicle you do not own shall be excess over any other collectible insurance or evidence of financial responsibility. However, any insurance we provide for a vehicle you do not own will be primary insurance if the vehicle is insured under a policy affording coverage to a named insured engaged in the "business" of:
 - a. Selling;
 - b. Repairing;
 - c. Servicing;
 - d. Delivering;
 - e. Testing;
 - f. Road testing;
 - g. Parking; or
 - h. Storing;motor vehicles. This applies only if an "insured":
 - (1) Is operating the vehicle; and
 - (2) Is neither the person engaged in such "business" nor that person's employee or agent.
2. Any insurance we provide for a vehicle you own shall be excess to that of:

- a. A person engaged in the "business" of:
 - (1) Selling;
 - (2) Repairing;
 - (3) Servicing;
 - (4) Delivering;
 - (5) Testing;
 - (6) Road testing;
 - (7) Parking; or
 - (8) Storing;

motor vehicles, if the accident occurs while

the vehicle is being operated by that person or that person's employee or agent; or

- b. An owner, tenant or lessee of premises on which loss arising out of the loading or unloading of the vehicle occurs.

3. We will pay only our share of:

- a. The loss. Our share of the loss is the proportion that our limit of liability bears to the total of all applicable limits.

- b. Defense costs if both primary and excess policies of liability insurance or evidence of financial responsibility apply to the loss. Our share of defense costs is the proportion that the

amount of damages paid by us bears to the total amount of damages paid under all applicable policies of liability insurance or evidence of financial responsibility.

INSURING AGREEMENT

PART B - MEDICAL PAYMENTS COVERAGE

- A. If you pay the premium for this coverage, we will pay the "usual and customary charges" incurred for necessary "medical services" because of "bodily injury":

- 1. Caused by accident; and
- 2. Sustained by an "insured".

We will pay only those expenses incurred for services rendered within 3 years from the date of the accident.

We have a right to review medical expenses and services to determine if they are reasonable and necessary for the "bodily injury" sustained.

- B. "Insured" as used in this Part means:

- 1. You or any "family member":
 - a. While "occupying"; or
 - b. As a pedestrian when struck by; a motor vehicle designed for use mainly on public roads or a trailer of any type.
- 2. Any other person while "occupying" "your covered auto" with your express or implied permission. The actual use must be within the scope of that permission.
- 3. Any other person while "occupying", as a guest, an automobile not owned by you or a "family member", while being operated by you or a "family member."

- C. "Usual and customary charges" as used in this Part mean:

Any amount which we determine represents a customary charge for services in the geographic area in which the service is rendered. To determine whether a charge is customary, we may consider outside sources of information of our choice, including, but not limited to:

- 1. Licensed, certified or registered health care professionals;
- 2. Medical examinations;
- 3. Medical file reviews;
- 4. Medical bill review services; or
- 5. Computerized data bases.

The "insured" shall not be responsible for payment of any reduction applied by us. If a medical provider disputes an amount paid by us, we will be responsible for resolving such disputes.

medical, surgical, dental, x-ray, ambulance, hospital, professional nursing, and funeral services, and includes the cost of eyeglasses, hearing aids, pharmaceuticals, orthopedics and prosthetic devices.

- D. "Medical services" as used in this Part means

EXCLUSIONS

We do not provide Medical Payments Coverage for any "insured" for "bodily injury":

- 1. Sustained while "occupying" any motorized vehicle having fewer than four wheels.
- 2. Sustained while "occupying" "your covered auto" when it is being used as a public or livery conveyance. This includes but is not limited to any period of time "your covered auto" is being used by any "insured" who is logged into a "transportation network platform" as a driver, whether or not a passenger is "occupying" the vehicle. This Exclusion (2.) does not apply to a share-the-expense car pool or when providing "volunteer services".
- 3. Sustained while occupying any vehicle while employed in the pickup or delivery of newspapers or magazines, food or any products for the purpose of compensation.
- 4. Sustained while "occupying" any vehicle located for use as a residence or premises.
- 5. Occurring during the course of employment if workers' compensation benefits are required or available for the "bodily injury".
- 6. Sustained while "occupying", or when struck by, any vehicle (other than "your covered auto") which is:
 - a. Owned by you; or
 - b. Furnished or available for your regular use.
- 7. Sustained while "occupying", or when struck by, any vehicle (other than "your covered auto") which is:
 - a. Owned by any "family member"; or

- b. Furnished or available for the regular use of any "family member".

However, this Exclusion (7.) does not apply to you.
- 8. Sustained while "occupying" a vehicle without the express or implied permission of the owner or other person having lawful possession, or using a vehicle beyond the scope of permission granted. However, this exclusion (8.) does not apply to a "family member" using "your covered auto".
- 9. Sustained while "occupying" a vehicle when it is being used in the "business" of an "insured". This Exclusion (9.) does not apply to "bodily injury" sustained while "occupying" a:
 - a. Private passenger auto;
 - b. Pickup or van; or
 - c. "Trailer" used with a vehicle described in (9.a.) or (9.b.) above.
- 10. Caused by or as a consequence of:
 - a. Discharge of a nuclear weapon (even if accidental);
 - b. War (declared or undeclared);
 - c. Civil war;
 - d. Insurrection; or
 - e. Rebellion or revolution.
- 11. From or as a consequence of the following, whether controlled or uncontrolled or however caused:
 - a. Nuclear reaction;
 - b. Radiation; or
 - c. Radioactive contamination.
- 12. Sustained while "occupying" any vehicle while it is participating in, or competing in, or practicing or preparing for any organized or pre-arranged or spontaneous racing, speed or demolition contest, drag racing, or stunting activity.
- 13. Caused by the actual, alleged or threatened presence, growth, proliferation or spread of "fungi" or bacteria.
- 14. Caused intentionally by or at the direction of that "insured" even if such "bodily injury" is of a different kind or degree than expected or in-tended.
- 15. Sustained while operating a vehicle if that "insured" is a family member or other person who is a resident of your household, unless you have notified us before the accident that such "family member" or person is an operator.

LIMIT OF LIABILITY

- A. The limit of liability shown in the Declarations for this coverage is our maximum limit of liability for each person injured in any one accident. This is the most we will pay regardless of the number of:
 - 1. "Insureds";
 - 2. Claims made;
 - 3. Vehicles or premiums shown in the Declarations;
 - 4. Vehicles involved in the accident; or
 - 5. Lawsuits brought.
- B. No one will be entitled to receive duplicate payments for the same elements of loss under this coverage and:
 - 1. Part A – Liability Coverage or Part C - Uninsured Motorists Coverage of this policy; or
 - 2. Any Underinsured Motorists Coverage provided by this policy.
- C. At our option, we may pay covered benefits to:
 - 1. An "insured";
 - 2. A person providing the services; or
 - 3. A person liable for payment of the expenses.

UNREASONABLE OR UNNECESSARY MEDICAL EXPENSES

If the "insured" incurs expenses for "medical services" that we deem to be unreasonable or unnecessary, we may refuse to pay for those expenses and contest them. If the "medical services" provider sues the "insured" because we refuse to pay expenses for "medical services" that we deem to be unreasonable or unnecessary, we will choose the counsel, pay resulting defense costs, and pay any resulting judgment against the "insured" subject to the limit of liability for this coverage. We will also pay reasonable expenses, including loss of earnings up to \$200 per day, incurred at our request.

The "insured" may not sue us for expenses for "medical services" we deem to be unreasonable or unnecessary unless the "insured" paid the entire disputed amount to the "medical services" provider or the "medical services" provider has initiated collection activity against the "insured" for the unreasonable or unnecessary expenses.

OTHER INSURANCE

If there is other applicable auto medical payments insurance available, any insurance we provide shall be excess over any other applicable auto medical payments insurance. If more than one policy applies on an excess basis, we will bear our proportionate share with other collectible auto medical payments insurance.

INSURING AGREEMENT

A. If you pay the premium for this coverage, we will pay compensatory damages which an "insured" is legally entitled to recover from the owner or operator of an "uninsured motor vehicle" because of:

- 1.** "Bodily Injury" sustained by that "insured"; and caused by an accident;
- 2.** "Property Damage" caused by an accident if the Declarations indicates that "property damage" Uninsured Motorists Coverage applies to that auto. Only items **(1.)** and **(4.)** under the definition of "uninsured motorist vehicle" apply to "property damage".

The owner's or operator's liability for these damages must arise out of the ownership, maintenance or use of the "uninsured motor vehicle". With respect to coverage under item **(2.)** of the definition of "uninsured motor vehicle", we will pay only after the limits of liability under any applicable liability bonds or policies applicable to the "uninsured motor vehicle" have been exhausted by payment of judgments or settlements.

Any judgment for damages arising out of a suit brought without our written consent is not binding on us.

B. "Insured" as used in this Part means:

- 1.** You or any "family member".
- 2.** Any other person "occupying" "your covered auto" with your express or implied permission. The actual use must be within the scope of that permission.
- 3.** Any person for damages that person is entitled to recover because of "bodily injury" to which this coverage applies sustained by a person described in **(1.)** or **(2.)** above.

C. "Property Damage" as used in this Part means injury to or destruction of "your covered auto". However, "property damage" does not include:

- 1.** Loss of use of "your covered auto"; or
- 2.** Damage to personal property contained in "your covered auto" other than a child passenger restraint system that:
 - a.** Meets the applicable federal motor vehicle safety standards; and
 - b.** Was damaged or was in use by a child at the time of the accident for which this coverage applies.

D. "Uninsured motor vehicle" means a land motor vehicle or trailer of any type:

- 1.** To which no liability bond or policy applies at the time of the accident.
- 2.** Which, with respect to damages for "bodily

injury" only, is an underinsured motor vehicle. An "underinsured motor vehicle" means a motor vehicle to which a liability or bond or policy applies at the time of the accident but its limit for liability is less than the limit of liability for Uninsured Motorist Coverage shown in the Declarations.

- 3.** Which, with respect to damages for "bodily injury" only, is a hit-and-run vehicle whose operator or owner cannot be identified and which makes physical contact with:
 - a.** You or any "family member";
 - b.** A vehicle which you or any "family member" are "occupying"; or
 - c.** "Your covered auto".
- 4.** To which a liability bond or policy applies at the time of the accident but the bonding or insuring company:
 - a.** Denies coverage;
 - b.** Refuses to admit coverage except conditionally or with reservation; or
 - c.** Is or becomes insolvent within one year of the date of the accident.

With respect to coverage for "property damage", the accident must involve direct physical contact between "your covered auto" and the "uninsured motor vehicle", and:

- 1.** The owner or operator of the "uninsured motor vehicle" must be identified; or
- 2.** The "uninsured motor vehicle" must be identified by its license number.

However, "uninsured motor vehicle" does not include any vehicle or equipment:

- 1.** Owned by you or any "family member" unless the vehicle being operated, or caused to be operated, by a person without the consent of the owner of such vehicle in connection with criminal activity that has been documented in a police report.
- 2.** Furnished or available for the regular use of you or any "family member".
- 3.** Owned or operated by a self-insurer under any applicable motor vehicle law, except a

self-insurer which is or becomes insolvent.

4. Owned by any governmental unit or agency.
5. Designed mainly for use off public roads while not on public roads.
6. While located for use as a residence or premises.

EXCLUSIONS

A. We do not provide Uninsured Motorists Coverage for "bodily injury" sustained:

1. By an "insured" while "occupying", or when struck by:
 - a. Any motor vehicle; or
 - b. A trailer of any type used with a motor vehicle;owned by that "insured" which is not insured for this coverage under this policy.
2. By any "family member" while "occupying", or when struck by any motor vehicle you own which is insured for this coverage on a primary basis under any other policy.

However, this Exclusion (A.) shall not apply to "bodily injury" sustained by an "insured" when struck by any motor vehicle or trailer:

1. Owned by that "insured"; and
2. Being operated, or caused to be operated, by a person without that "insured's" consent in connection with criminal activity that has been documented in a police report and that "insured" is not a party to the criminal activity.

B. We do not provide Uninsured Motorists Coverage for "bodily injury" sustained by any "insured":

1. If that "insured" or the legal representative settles the "bodily injury" claim and such settlement prejudices our right to recover payment.

This Exclusion (B.1.) does not apply to a settlement made with the insurer of a vehicle described in Section 2. of the definition of "uninsured motor vehicle."

2. While "occupying" "your covered auto" when it is being used as a public or livery conveyance. This includes but is not limited to any period of time "your covered auto" is being used by any "insured" who is logged into a "transportation network platform" as a driver, whether or not a passenger is "occupying" the vehicle. This Exclusion (B.2.) does not apply to a share-the-expense car pool or when providing "volunteer services".
3. While using any vehicle while employed in the pickup or delivery of newspapers or magazines, food or any products for the purpose of compensation.
4. While using a vehicle without the express or implied permission of the owner or other person

having lawful possession or using a vehicle beyond the scope of the permission granted. However, this exclusion (B.4.) does not apply to a "family member" using "your covered auto".

5. While "occupying" or operating an owned motorcycle or moped.
6. While "occupying" a motor vehicle rented or leased to that "insured" for use as a public or livery conveyance. This includes but is not limited to any period of time such vehicle is being used by any "insured" who is logged into a "transportation network platform" as a driver, whether or not a passenger is "occupying" the vehicle. This Exclusion (B.6.) does not apply when providing "volunteer services".
7. While "occupying" any vehicle while participating in, or competing in, or practicing or preparing for any organized or pre-arranged or spontaneous racing, speed or demolition contest, drag racing, or stunting activity.

C. We do not provide Uninsured Motorists Coverage for "property damage" sustained by any "insured" while "occupying" or when struck by any motor vehicle owned by you or any "family member" which is not insured for this coverage under this policy.

D. This coverage shall not apply:

1. To "property damage" to:
 - a. A trailer of any type;
 - b. Any motor vehicle owned by you or to which Collision Coverage applies under this policy;
 - c. Any other motor vehicle to the extent that there is valid and collectible Collision Coverage applicable to that damage under any other policy; or
 - d. Any vehicle while participating in, or competing in, or practicing or preparing for any organized or pre-arranged or spontaneous racing, speed or demolition contest, drag racing, or stunting activity.
2. Directly or indirectly to benefit:
 - a. Any insurer or self-insurer under any of the following or similar law:
 - (1) Workers' compensation law; or
 - (2) Disability benefits law.
 - b. Any insurer of property.
3. Directly to the benefit of the United States or any state or political subdivision thereof.

E. We do not provide Uninsured Motorists Coverage for "punitive or exemplary damages".

F. We do not provide Uninsured Motorists Coverage for "bodily injury" resulting from an accident for which you or any "family member" are legally responsible.

LIMIT OF LIABILITY

- A. The limit of Bodily Injury Liability shown in the Declarations for each person for Uninsured Motorists Coverage is our maximum limit of liability for all damages arising out of "bodily injury"

sustained by any one person in any one accident. Except as otherwise provided by law, the "each person" limit of liability applies to the total of all claims made for "bodily injury" to a person and all claims of others derived from such "bodily injury", including, but not limited to, emotional injury or mental anguish resulting from the "bodily injury" of another or from witnessing the "bodily injury" to another, loss of society, loss of companionship, loss of services, loss of consortium, and wrongful death.

Subject to this limit for each person, the limit of Bodily Injury Liability shown in the Declarations for each accident for Uninsured Motorists Coverage is our maximum limit of liability for all damages for "bodily injury" resulting from any one accident.

Our maximum limit of liability for all damages for "property damage" resulting from any one accident will be the lesser of:

1. The limit of Uninsured Motorists Property Damage Liability shown in the Declarations;
2. The actual cash value of "your covered auto"; or
3. The amount of the deductible if there is valid and collectible Collision Coverage under this or any other policy.

An adjustment for depreciation and physical condition will be made in determining actual cash value at the time of the loss.

The limit of Uninsured Motorists Bodily Injury Liability or Uninsured Motorists Property Damage Liability shown in the Declarations is the most we will pay regardless of the number of:

1. "Insureds";
2. Claims made;
3. Vehicles or premiums shown in the Declarations;
4. Vehicles involved in the accident; or
5. Lawsuits brought.

In no event shall the limit of liability for two or more policies be added together, combined or stacked to determine the limit of insurance coverage available to injured persons or damaged property.

- B.** With respect to coverage under item 2. of the definition of "uninsured motor vehicle", the limit of liability shall be reduced by all sums:

1. Paid because of the "bodily injury" by or on behalf of persons or organizations who may be legally responsible. This includes all sums paid under Part A – Liability Coverage of the policy; and
2. Paid or payable because of the "bodily injury" under any automobile medical payments coverage. This includes all sums paid under Part B – Medical Payments Coverage.

- C.** No one will be entitled to receive duplicate payments for the same elements of loss under this coverage

and Part A – Liability Coverage or Part B – Medical Payments Coverage of this policy.

- D.** We will not make a duplicate payment under this coverage for any element of loss for which payment has been made by or on behalf of persons or organizations who may be legally responsible.
- E.** We will not pay for any element of loss if a person is entitled to receive payment for the same element of loss under any workers' compensation law exclusive of non-occupational disability benefits.
- F.** A vehicle and attached "trailer" are considered one vehicle. Therefore the limits of liability will not be increased for an accident involving a vehicle which has an attached "trailer."

OTHER INSURANCE

If there is other applicable insurance available under one or more policies or provisions of coverage that is similar to the insurance provided under this Part of the policy:

1. Any recovery for damages under all such policies or provisions of coverage may equal but not exceed the highest applicable limit for any one vehicle under any insurance providing coverage on either a primary or excess basis.
2. Any insurance we provide with respect to a vehicle you do not own, including any vehicle while used as a temporary substitute for "your covered auto", shall be excess over any collectible insurance providing such coverage on a primary basis.
3. If the coverage under this policy is provided:
 - a. On a primary basis, we will pay only our share of the loss that must be paid under insurance providing coverage on a primary basis. Our share is the proportion that our limit of liability bears to the total of all applicable limits of liability for coverage provided on a primary basis.
 - b. On an excess basis, we will pay only our share of the loss that must be paid under insurance providing coverage on an excess basis. Our share is the proportion that our limit of liability bears to the total of all applicable limits of liability for coverage provided on an excess basis.

ARBITRATION

- A.** If we and an "insured" do not agree:

1. Whether that "insured" is legally entitled to recover damages under this coverage; or
2. As to the amount of damages which are recoverable by that "insured";

then the matter will be settled by arbitration. Such arbitration may be initiated by a written demand for arbitration made by either party. The arbitration shall be conducted by a single neutral arbitrator. Selection of an arbitrator shall be made by agreement. If the parties do not agree, one shall be

appointed by the California Superior Court for a county having proper jurisdiction.

With respect to "property damage," arbitration proceedings must be formally instituted by the "insured" within 1 year from the date of the accident. Disputes concerning coverage under this Part may not be arbitrated.

- B. Each party will:
 - 1. Pay the expenses it incurs; and
 - 2. Bear the expenses of the arbitrator equally.
 - C. Any decision of the arbitrator will be binding as to:
 - 1. Whether the "insured" is legally entitled to recover damages; and
 - 2. The amount of damages.
- In no event shall our liability, regardless of the award of the arbitrator, exceed the limit of liability shown in the Declarations."

PART D - COVERAGE FOR DAMAGE TO YOUR AUTO

INSURING AGREEMENT

- A. If you pay the premium for this coverage, we will pay for sudden, direct and accidental loss to "your covered auto" or any "non-owned auto", including its equipment, and any child safety seat damaged or in use in "your covered auto" or "non-owned auto", less any applicable deductible shown in the Declarations. We will pay for loss to "your covered auto" caused by:

- 1. Other than "collision" only if the Declarations indicate that Comprehensive Coverage is provided for that auto.
- 2. "Collision" only if the Declarations indicate that Collision Coverage is provided for that auto.

If there is a loss to a "non-owned auto", we will provide the broadest coverage applicable to any "your covered auto" shown in the Declarations.

Deductible

Unless stated otherwise, the applicable deductible shown in the Declarations shall be applied to each accidental loss covered under this Part of the policy. If loss to more than one of "your covered autos" or a "non-owned auto" results from the same loss, only the highest applicable deductible will apply. In the event of a collision with another vehicle insured by MAPFRE Insurance Company, other than a vehicle described as "your covered auto" or "non-owned auto", no deductible will apply.

Uninsured Motorist Waiver of Collision Deductible

No deductible will apply if the collision is caused by an "uninsured motor vehicle" as the term is defined in Items (1.) and (4.) of the "uninsured motor vehicle" definition and both of the following apply:

- 1. you are legally entitled to recover the amount of the loss from the owner or operator of the "uninsured motor vehicle"; and
- 2. the Declarations indicates that Waiver of Collision Deductible coverage applies to that vehicle.

Subject to the above, if you are legally entitled to recover only a percentage of the loss, we will pay

that percentage of your deductible. However, if the amount of the loss is less than your deductible, we will pay the percentage of the loss you are legally entitled to recover. In no event will we pay more than the amount of the loss.

The Part C – Uninsured Motorists Coverage Arbitration provisions and Part E --- Duties After An Accident Or Loss provisions apply to this Uninsured Motorist Waiver of Collision Deductible Provision.

- B. "Collision" means the upset of "your covered auto" or a "non-owned auto" or their impact with another vehicle or object.
- C. "Comprehensive" means loss, other than "collision", to "your covered auto" or a "non-owned auto". Loss caused by the following are not "collision" losses but are considered "comprehensive" losses:
 - 1. Missiles or falling objects;
 - 2. Fire;
 - 3. Theft or larceny;
 - 4. Explosion or earthquake;
 - 5. Windstorm;
 - 6. Hail, water or flood;
 - 7. Malicious mischief or vandalism;
 - 8. Riot or civil commotion;
 - 9. Contact with bird or animal; or
 - 10. Breakage of glass.

If breakage of glass is caused by a "collision", you may elect to have it considered a loss caused by "collision".

- D. 1. "Non-owned auto" means:
 - a. Any private passenger auto, pickup, van (other than cargo van) or "trailer" with a Gross Vehicle Weight Rating of 12,000 pounds or less or any cargo van or moving van with a Gross Vehicle Weight Rating of 18,000 pounds or less, not owned by or furnished or available for the regular use of you or any "family member" while in the custody of or being operated by you or any "family member"; or

- b. Any auto or "trailer" you do not own while used as a temporary substitute for "your covered auto" which is out of normal use because of its:

- (1) Breakdown;
- (2) Repair;
- (3) Servicing;
- (4) Loss; or
- (5) Destruction.

2. "Non-owned auto" does not include any vehicle which has been operated or rented by or in the possession of an "insured" for 30 or more consecutive days. This does not apply to a temporary substitute vehicle authorized by us.

- E. "Custom Equipment" means parts, equipment, devices, accessories, enhancements, and changes, other than those that are offered by the manufacturer specifically for that vehicle model, or that are installed by the vehicle dealership as part of the original sale of a new vehicle, that:

1. are permanently installed or attached; and
2. alter the appearance or performance of a vehicle.

- F. "Diminution in value" means the actual or perceived loss in market or resale value which results from a direct and accidental loss.

TRANSPORTATION EXPENSES

- A. In addition, we will pay, without application of a deductible, up to a maximum of \$600 for:

1. Temporary transportation expenses not exceeding \$20 per day incurred by you in the event of a loss to "your covered auto". We will pay for such expenses if the loss is caused by:
 - a. Other than "collision" only if the Declarations indicate that Comprehensive Coverage is provided for that auto.
 - b. "Collision" only if the Declarations indicate that Collision Coverage is provided for that auto.
2. Expenses for which you become legally responsible in the event of loss to a "non-owned auto". We will pay for such expenses if the loss is caused by:
 - a. Other than "collision" only if the Declarations indicate that Comprehensive Coverage is provided for any "your covered auto".
 - b. "Collision" only if the Declarations indicate that Collision Coverage is provided for any "your covered auto".

However, the most we will pay for any expenses for loss of use is \$20 per day up to a maximum of \$600.

- B. Subject to the provisions of Paragraph (A.), if the loss is caused by:

1. A total theft of "your covered auto" or a

"non-owned auto", we will pay only expenses incurred during the period:

- a. Beginning 48 hours after you report the theft to us; and
- b. Ending the earliest of:
 - (1) When "your covered auto" or the "non-owned auto" has been recovered and returned to you or its owner;
 - (2) When "your covered auto" or "non-owned auto" has been recovered and repaired;
 - (3) When "your covered auto" or "non-owned auto" has been replaced; or
 - (4) 72 hours after "we" make an offer to settle the loss if "your covered auto" or "non-owned auto" is deemed by us to be a total loss.

2. Other than theft of a "your covered auto" or a "non-owned auto", we will pay only expenses beginning when the auto is withdrawn from use for more than 24 hours.

Our payment will be limited to that period of time reasonably required to repair or replace the "your covered auto" or the "non-owned auto".

We must receive written proof of transportation expenses and loss of use damages.

EXCLUSIONS

We will not pay for:

1. Loss to "your covered auto" or any "non-owned auto" which occurs while it is being used as a public or livery conveyance. This includes but is not limited to any period of time "your covered auto" or any "non-owned auto" is being used by any person with the consent of the owner who is logged into a "transportation network platform" as a driver, whether or not a passenger is "occupying" the vehicle. This Exclusion (1.) does not apply to a share-the-expense car pool or when providing "volunteer services".
2. Loss to "your covered auto" or any "non-owned auto" while employed in the pickup or delivery of newspapers or magazines, food or any products for the purpose of compensation.
3. Damage or loss due and confined to:
 - a. Wear and tear;
 - b. Freezing;
 - c. Mechanical or electrical breakdown or failure; or
 - d. Road damage to tires.This Exclusion (3.) does not apply if the damage results from the total theft of "your covered auto" or any "non-owned auto".
4. Loss due to or as a consequence of:
 - a. Discharge of any nuclear weapon (even if accidental);
 - b. War (declared or undeclared);

- c. Civil war;
 - d. Insurrection; or
 - e. Rebellion or revolution.
5. Loss from or as a consequence of the following, whether controlled or uncontrolled or however caused:
- a. nuclear reaction;
 - b. radiation; or
 - c. radioactive contamination.
6. Loss to any electronic equipment designed for the production or reproduction of sound, pictures, audio, visual or data or that receives or transmits sound, pictures or data signals.

This exclusion (6.) does not apply to:

- a. equipment designed for the reproduction of sound or transmission of sound, pictures, audio, visual or data signals and accessories used with such equipment, provided:
 - (1) the electronic equipment is permanently installed by the original vehicle manufacturer or manufacturer's dealership in "your covered auto" or any "non-owned auto"; or
 - (2) the electronic equipment is:
 - (a) Removable from a housing unit which is permanently installed by the original vehicle manufacturer or manufacturer's dealership in the auto;
 - (b) designed to be solely operated by use of the power from the auto's electrical system; and
 - (c) in or upon "your covered auto" or any "non-owned auto";

at the time of the loss.

However, we will pay only up to a total of \$1,000 or the actual cash value of "your covered auto" or any "non-owned auto", whichever is less, for all "custom equipment."

- b. any other electronic equipment that is:
 - (1) necessary for the normal operation of the auto or the monitoring of the auto's operating systems;
 - (2) an integral part of the same unit housing any electronic equipment described in 6.a. and permanently installed by the original vehicle manufacturer or manufacturer's dealership in "your covered auto" or any "non-owned auto."

7. Loss to:

- a. Tapes, records, discs, or other media used with such equipment described in exclusion (6.); or
 - b. Any other accessories, not permanently installed used with such equipment described in exclusion (6.).
8. A total loss to "your covered auto" or any "non-owned auto" due to destruction or confiscation by governmental or civil authorities. This Exclusion (8.) does not apply to the interests of Loss Payees in "your covered auto".
9. Loss to:
- a. A "trailer", camper body, or motor home, which is not shown in the Declarations; or
 - b. Facilities or equipment used with such "trailer", camper body or motor home. Facilities or equipment include but are not limited to:
 - (1) Cooking, dining, plumbing or refrigeration facilities;
 - (2) Awnings or cabanas; or
 - (3) Any other facilities or equipment used with a "trailer", camper body, or motor home.

This Exclusion (9.) does not apply to a:

- a. "Trailer", and its facilities or equipment, which you do not own; or
 - b. "Trailer", camper body, or the facilities or equipment in or attached to the "trailer" or camper body, which you:
 - (1) Acquire during the policy period; and
 - (2) Ask us to insure within 30 days after you become the owner.
10. Loss to any "non-owned auto" when used by you or any "family member" without the ex-press or implied permission of the owner or other person having lawful possession, or using a vehicle beyond the scope of the permission granted.
11. Loss to equipment designed or used for the detection or location of law enforcement equipment.
12. Loss in excess of \$1,000 per claim or the actual cash value of "your covered auto" or any "non-owned auto", whichever is less, for any furnishings or equipment that were not in-stalled by the original vehicle manufacturer or manufacturer's dealership which mechanically or structurally changes your vehicle and results in increase performance or change in appearance, including but not limited to:
- a. Custom murals, paintings or other decals or graphics;
 - b. Custom wheels, tachometers, pressure and temperature gauges;
 - c. Modified or custom engines and fuel systems, light bars, racing slicks and/or

over-sized tires, roll bars and lift kits, winches, utility boxes, and tool boxes; or

d. Non-standard paint.

This Exclusion **(12.)** does not apply to equipment installed to make a vehicle handicap accessible.

13. Loss to any "non-owned auto" being maintained or used by any person while employed or otherwise engaged in the "business" of:

- a. Selling;**
- b. Repairing;**
- c. Servicing;**
- d. Storing; or**
- e. Parking;**

vehicles designed for use on public highways. This includes road testing and delivery.

14. Loss to any "non-owned" auto being maintained or used by any person while employed or otherwise engaged in any "business" not described in exclusion **(2.) and **(11.)** This exclusion **(14.)** does not apply to the maintenance or use by you or any "family member" or a "non-owned auto" which is a private passenger auto or "trailer".**

15. Loss to "your covered auto" or any "non-owned auto" while it is participating in, or competing in, or practicing or preparing for any organized or pre-arranged or spontaneous racing, speed or demolition contest, drag racing, or stunting activity.

16. Loss to, or loss of use of, a "non-owned auto" rented by:

- a. You; or**
- b. Any "family member";**

if a rental vehicle company is precluded from recovering such loss or loss of use, from you or that "family member", pursuant to the provisions of any applicable rental agreement or state law.

17. Loss to "your covered auto" or any "non-owned auto", arising out neglect. Neglect means your failure to adequately maintain "your covered auto" after the loss.

With respect to water under Comprehensive Coverage, there is no coverage for:

- a. moisture, condensation, humidity, or vapor;**
- b. water intrusion around or through panels, surfaces and seals; or**
- c. water that collects in spaces or ventilation systems; or**
- d. "fungi", dry rot or bacteria; resulting from neglect.**

18. Loss to "your covered auto" or any "non-owned auto", arising out of the actual, alleged or threatened presence, growth, proliferation or spread of "fungi", dry rot or bacteria

19. Loss to "your covered auto", "non-owned auto", or trailer, for "diminution in value."

20. Loss arising out of the use of "your covered auto" while leased or rented to others.

21. Loss to "your covered auto" or a "non-owned auto" caused by an intentional act by you or a "family member", or at the direction of you or a "family member."

22. Loss to "your covered auto" or any "non-owned auto" while being operated by any "family member" or other person who is a resident of your household unless you have notified us before the loss that such "family member" or person is an operator.

LIMIT OF LIABILITY

A. At our option, our limit of liability for loss will be the lowest of:

- 1. The actual cash value of the stolen or damaged property reduced by the applicable deductible and salvage value if you or the owner retain the salvage; or**
- 2. The amount necessary to repair or replace the property with similar kind and quality as permitted by law; or**
- 3. The limit of liability shown in the Declarations if one is shown.**

However, the most we will pay for loss to any "non-owned auto" which is a "trailer" is \$1,500.

B. An adjustment for depreciation and physical condition may be made based upon the physical condition and wear and tear of the property or damaged part of the property at the time of the loss. This adjustment for physical condition includes but is not limited to, broken, cracked or missing parts, rust, dents, scrapes, gouges and paint condition. When replacing parts normally subject to repair or replacement during the useful life of the vehicle, we will not pay for the amount of any betterment.

PAYMENT OF LOSS

We may pay for loss in money or repair or replace the damaged or stolen property. We may, at our expense, return any stolen property to:

- 1. You; or**
- 2. The address shown in this policy.**

If we return stolen property we will pay for any damage resulting from the theft. We may keep all or part of the property at an agreed or appraised value.

If we pay for loss in money, our payment will include the applicable sales tax for the damaged or stolen property.

NO BENEFIT TO BAILEE

This insurance shall not directly or indirectly benefit any carrier or other bailee for hire.

OTHER SOURCES OF RECOVERY

If other sources of recovery also cover the loss, we will pay only our share of the loss. Our share is the proportion that our limit of liability bears to the total of all applicable limits. However, any insurance we provide with respect to a "non-owned auto" shall be excess over any other collectible source of recovery including, but not limited to:

1. Any coverage provided by the owner of the "non-owned auto";
2. Any other applicable physical damage insurance;
3. Any other source of recovery applicable to the loss.

If more than one policy applies on an excess basis, we will bear our proportionate share with other collectible sources of recovery.

APPRAISAL

- A. If we and you do not agree on the amount of loss, either may demand an appraisal of the loss. In this event, each party will select a competent and impartial appraiser. The two appraisers will select an umpire. The appraisers will state separately the actual cash value and the amount of loss. If they fail to agree, they will submit their differences to the umpire. A decision agreed to by any two will be binding. Each party will:
 1. Pay its chosen appraiser; and
 2. Bear the expenses of the appraisal and umpire equally.
- B. We do not waive any of our rights under this policy by agreeing to an appraisal.

PART E – GENERAL PROVISIONS

We have no duty to provide coverage under this policy if the failure to comply with the following duties is prejudicial to us:

- A. We must be notified promptly of how, when and where the accident or loss happened. Notice should also include the names and addresses of any injured persons and of any witnesses.
- B. A person seeking any coverage must:
 1. Cooperate with us in the investigation, settlement or defense of any claim or suit.
 2. Promptly send us copies of any notices or legal papers received in connection with the accident or loss and any other documents we may reasonably require.
 3. Submit, as often as we reasonably require:
 - a. To physical exams by physicians we select. We will pay for these exams.
 - b. To signed and recorded statements, including sworn statements and examination under oath and subscribe the same. We may examine any "insured" separately and apart from the presence of any other "insured".
 4. Authorize us to obtain:
 - a. Medical reports; and
 - b. Other pertinent records.If the person is deceased or unable to act, his or her legal representative shall authorize us to obtain all medical reports and records.
 5. Submit a proof of loss, under oath if requested, when required by us.

- C. A person seeking Uninsured Motorists Coverage

must also:

1. Promptly notify the police or other proper authority, within 24 hours if a hit-and-run driver is involved. The "insured" must provide us within 30 days of the accident, a statement under oath:
 - a. that the "insured" has a cause of action for damages arising out of an accident with a hit-and-run vehicle whose owner or operator cannot be identified; and
 - b. setting forth the facts in support thereof.At our request, the "insured" must make "your covered auto" available for inspection.
2. Promptly send us copies of the legal papers if a suit is brought.

A person seeking coverage for "bodily injury" sustained in an accident involving a vehicle described in item 2. of the definition of "uninsured motor vehicle" must:

1. Provide us with a copy of the complaint by personal service or certified mail, if the "insured" brings action against the owner or operator of the "uninsured motor vehicle."
2. Within a reasonable time, make available all pleadings and depositions for copying by us or furnish us copies at our expense.
3. Provide us with proof that the limits of liability under any applicable liability bonds or policies have been exhausted by payment of judgments or settlements.

A person seeking Uninsured Motorists Coverage for "property damage" must also notify us or their agent or broker within 10 business days of the accident.

- D.** A person seeking Coverage For Damage To Your Auto must also:
1. Take reasonable steps after loss to protect "your covered auto" or any "non-owned auto" and their equipment from further loss. We will

pay reasonable expenses incurred to do this.

2. Promptly notify the police if "your covered auto" or any "non-owned auto" is stolen.
3. Permit us to inspect and appraise the damaged property before its repair or disposal.

PART F - DUTIES AFTER AN ACCIDENT OR LOSS

BANKRUPTCY

Bankruptcy or insolvency of the "insured" shall not relieve us of any obligations under this policy.

CHANGES

- A.** This policy, your Declarations page and endorsements issued by us to this policy contain all the agreements between you and us. Its terms may not be changed or waived except by endorsement issued by us.
- B.** If there is a change to the information used to develop the policy premium, we may adjust your premium. Changes during the policy term that may result in a premium increase or decrease include, but are not limited to, changes in:
1. The number, type or use classification of insured vehicles;
 2. Operators using insured vehicles, including newly licensed "family member" drivers and any household members that have licenses;
 3. The location where your vehicle is principally garaged;
 4. Coverage, deductible or limits.

If a change resulting from **(A.)** or **(B.)** requires a premium adjustment, we will make the premium adjustment in accordance with our manual rules.

- C.** If we make a change which broadens coverage under this edition of your policy without additional premium charge, that change will automatically apply to your policy as of the date we implement the change in your state. This Paragraph **(C.)** does not apply to changes implemented with a general program revision that includes both broadenings and restrictions in coverage, whether that general program revision is implemented through introduction of:
1. A subsequent edition of your policy; or
 2. An Amendatory Endorsement.
- D.** If you ask us to delete a vehicle from this policy, no coverage will apply to that vehicle as of the date and time you ask us to delete it.

DUTY TO REPORT CHANGES

You must promptly notify us when:

1. Your mailing or residence address changes;
2. The principal garaging address for "your covered auto" shown in the Declarations changes; in your household or the persons who regularly operate "your covered auto";

3. There is a change with respect to the residents
4. An operator's marital status changes;
5. You or a "family member" obtain a driver's license or operator's permit; or
6. You acquire an additional or replacement vehicle.

PAYMENT OF PREMIUM AND FEES

If your initial premium payment is by check, draft, electronic funds transfer, or similar form of remittance, coverage under this policy is conditioned on payment to us by the financial institution. If the financial institution upon presentment does not honor the check, draft, electronic funds transfer, or similar form of remittance, this policy may, at our option, be deemed void from its inception. This means we will not be liable under this policy for any claims or damages that would otherwise be covered if the check, draft, electronic funds transfer, or similar form of remittance had been honored by the financial institution. Any action by us to present the remittance for payment more than once shall not affect our right to void this policy.

In addition to premium, fees may be charged on your policy. We may charge fees for installment payments, late payments, and other transactions. Payments made on your policy will be applied first to fees, then to premium due.

FRAUD

This policy was issued in reliance upon the information provided on your application. We may void this policy if you or an "insured" have concealed or misrepresented any material fact or circumstance, or engaged in fraudulent conduct, at the time application was made or at any time during the policy period.

We may void this policy or deny coverage for an accident or loss if you or any "insured" have concealed or misrepresented any material fact or circumstance, or engaged in fraudulent conduct, in connection with the presentation or settlement of a claim.

We may void this policy or deny coverage for fraud or material misrepresentation even after the occurrence of an accident or loss. This means we will not be liable for any claims or damages which would otherwise be covered. If we make a payment, we may request that you reimburse us. If so requested, you must reimburse us for any payments we may have already made.

LEGAL ACTION AGAINST US

- A.** No legal action may be brought against us until there has been full compliance with all the terms of this policy. In addition, under Part **A** – Liability Coverage, no legal action may be brought against us until:
 - 1.** We agree in writing that the "insured" has an obligation to pay; or
 - 2.** The amount of that obligation has been finally determined by judgment after trial.
- B.** No person or organization has any right under this policy to bring us into any action to determine the liability of an "insured".
- C.** If we retain salvage, we have no duty to preserve or otherwise retain the salvage for any purpose, including evidence for any civil or criminal proceeding.
- D.** This provision does not apply to Uninsured Motorists Coverage.

LEGAL ACTION AGAINST US – UNINSURED MOTORISTS COVERAGE

No legal action may be brought against us until:

- A.** There has been full compliance with all the terms of the policy; and
- B.** With respect to an accident involving a vehicle described in items **1.**, **3.** and **4.** of the definition of "uninsured motor vehicle", one of the following actions is taken within two years from the date of the accident:
 - 1.** agreement as to the amount of damages for "bodily injury" due under this coverage has been concluded;
 - 2.** the "insured" or the "insured's" legal representative has formally instituted arbitration proceedings by notifying us in writing. With respect to "bodily injury", such notification must be sent by certified mail, return receipt requested; or
 - 3.** suit for "bodily injury" has been filed against the uninsured motorist in a court of competent jurisdiction. Written notice of the suit must be provided to us within a reasonable time after the "insured" knew or should have known of the uninsured status of the other motorist. In no event will such notice be required before one year from the date of the accident. Failure of the "insured" or "insured's" representative to provide such notice will not be a basis for a denial of coverage unless such failure prejudices our rights.
- C.** If we retain salvage, we have no duty to preserve or otherwise retain the salvage for any purpose, including evidence for any civil or criminal proceeding.

OUR RIGHT TO RECOVER PAYMENT

- A.** If we make a payment under this policy and the person to or for whom payment was made has a right to recover damages from another person, entity or organization, we shall be subrogated to that right. That person shall:
 - 1.** Do whatever is necessary to enable us to exercise our rights; and
 - 2.** Do nothing after loss to prejudice them.However, our rights in this Paragraph **(A.)** do not apply under Part **D** – Coverage for Damage to Your Auto, against any person using "your covered auto" with a reasonable belief that that person is entitled to do so.

This paragraph **(A.)** does not apply to coverage under item **2.** of the definition of uninsured motor vehicle or Part **B** – Medical Payments Coverage of the policy.
- B.** If we make a payment under this policy and the person to or for whom payment is made recovers damages from another, that person shall:
 - 1.** Hold in trust for us the proceeds of the recovery; and
 - 2.** Reimburse us to the extent of our payment.This paragraph does not apply to coverage under items **1.**, **3.** or **4.** of the definition of uninsured motor vehicle.
- C.** With respect to Part **B** – Medical Payments, we shall be entitled to the payment and reimbursement as provided in paragraph **B.** of this provision regardless of whether the total amount of the recovery of the person to or for whom payment was made (or his or her estate, parent or legal guardian) is less than the actual loss suffered by that person (or his or her estate, parent or legal guardian). The proceeds of any judgment or settlement obtained by us or the person to or for whom payment was made (or his or her estate, parent or legal guardian) shall first be applied to satisfy our claims, liens, and other rights under paragraph **B.** of this provision.
- D.** If an insured person recovers from another without our written consent, the insured person's rights to payment under any affected coverage will no longer exist.
- E.** If we elect to exercise our rights of recovery against another, we will also attempt to recover any deductible incurred by an insured person under this policy unless we are specifically instructed by that person not to pursue the deductible. We have no obligation to pursue recovery against another for any loss not covered by this policy.

- F.** We reserve the right to compromise or settle the deductible and property damage claims against the responsible parties for less than the full amount. We reserve the right to incur reasonable expenses and attorney fees in pursuit of the recovery.

If the total recovery is less than the total of our payment and the deductible, we will reduce reimbursement of the deductible by the proportion that the actual recovery bears to the total of our payment and the deductible. We will not reduce your share of the recovery by any attorney fees or collection expenses we incur unless an outside attorney or collection agency is retained.

These provisions will be applied in accordance with state law.

JOINT AND INDIVIDUAL INTERESTS

If there is more than one named insured on this policy, any named insured may cancel or change this policy. The action of one named insured will be binding on all persons provided coverage under this policy.

POLICY PERIOD AND TERRITORY

- A.** This policy applies only to accidents and losses which occur:
- 1.** During the policy period as shown in the Declarations; and
 - 2.** Within the policy territory.
- B.** The policy period is the period stated in the Declarations. The policy may be renewed for successive policy periods if the required premium is paid and accepted by us on or before the expiration of the current policy period. The premium will be computed at our then current rate for coverage then offered.
- C.** The policy territory is:
- 1.** The United States of America, its territories or possessions;
 - 2.** Puerto Rico; or
 - 3.** Canada.

This policy also applies to loss to, or accidents involving, "your covered auto" while being transported between their ports.

TERMINATION

A. Cancellation

This policy may be cancelled during the policy period as follows:

- 1.** The named insured shown in the Declarations may cancel by:
 - a.** Returning this policy to us; or

- b.** Giving us advance written or verbal notice of the date cancellation is to take effect. We may waive the requirement that the notice be in writing by confirming the date and time of cancellation to you in writing.
- 2.** We may cancel by mailing to the named insured shown in the Declarations at the address shown in the Declarations:
 - a.** At least 10 days notice prior to the effective date of cancellation for nonpayment of premium; or.
 - b.** At least 20 days notice in all other cases.
 - 3.** After this policy is in effect for 60 days, or if this is a renewal or continuation policy, we will cancel only:
 - a.** For nonpayment of premium; or
 - b.** If your driver's license or that of:
 - (1)** Any driver who lives with you; or
 - (2)** Any driver who customarily uses "your covered auto";has been suspended or revoked. This must have occurred:
 - (1)** During the policy period; or
 - (2)** 180 days prior to the most recent renewal or effective date of the policy and we had no notice of such suspension or revocation.However, with respect to a suspended driver's license, such cancellation will not become effective if you provide sufficient documentation that the suspension is removed prior to the time that the cancellation of the policy is to become effective; or
 - c.** If the policy was obtained through material misrepresentation of any of the following information, and the correct information is not furnished to us within 20 days of receipt of notice of cancellation:
 - (1)** safety record;
 - (2)** annual miles driven in prior years;
 - (3)** number of years of driving experience;
 - (4)** record of prior automobile insurance claims, if any; or
 - (5)** any other factor found by the Commissioner of Insurance to have a substantial relationship to the risk of loss.

B. Nonrenewal

If we decide not to renew or continue this policy, we will mail notice to the named insured at the address shown in the Declarations. Notice will be mailed at least 30 days before the end of the policy period.

C. Automatic Termination

If we offer to renew or continue and you or your representative do not accept, this policy will automatically terminate at the end of the current policy period. Failure to pay the required renewal or continuation premium when due shall mean that you have not accepted our offer.

Coverage for "your covered auto" shall automatically terminate on the effective date of any other motor vehicle insurance policy covering that vehicle.

D. Returned Checks / Payments

Down Payments: If a new business or renewal down payment of any type is not honored by your bank or card issuer, your policy will be null and void. The policy will not provide any coverage.

Payments to Avoid Cancellation: If a payment, of any type, made to pay past due premium specified in a notice of cancellation is not honored by your bank or card issuer, any action taken by us in reliance on that payment (including the continuation or reinstatement of your policy) will be null and void. As a result, your policy will cancel effective on the date coverage ends displayed on the notice of cancellation.

Other Payments: If any other payment, of any type, is not honored by your bank or card issuer, the amount of the payment will be removed from your balance and a returned check fee, as indicated on the front of this bill, will be added. Removal of the returned payment may cause a notice of cancellation to issue on your policy.

E. Other Termination Provisions

1. We may deliver any notice instead of mailing it. Proof of mailing of any notice shall be sufficient proof of notice.
2. If this policy is cancelled, you may be entitled to a premium refund. If so, we will send you the refund. The premium refund, if any, will be computed on a pro rata basis. However, making or offering to make the refund is not a condition of cancellation.
3. The effective date of cancellation stated in the notice shall become the end of the policy period.

TERMS OF POLICY CONFORMED TO STATUTES

If any provision of this policy fails to conform to the statutes of the state listed on your application as your residence, the provision shall be deemed amended to conform to such statutes. All other provisions shall be given full force and effect. Any disputes as to the coverages provided or the provisions of this policy shall be governed by the law of the state listed on your application as your residence.

TRANSFER OF YOUR INTEREST IN THIS POLICY

- A.** Your rights and duties under this policy may not be assigned without our written consent. However, if a named insured shown in the Declarations dies, coverage will be provided for:
1. The surviving spouse if resident in the same household at the time of death. Coverage applies to the spouse as if a named insured shown in the Declarations; and
 2. The legal representative of the deceased person as if a named insured shown in the Declarations. This applies only with respect to the representative's legal responsibility to maintain or use "your covered auto".
- B.** Coverage will only be provided until the end of the policy period.

TWO OR MORE AUTOS INSURED; TWO OR MORE AUTO POLICIES

If this policy insures two or more autos or if any other auto insurance policy issued to you by us applies to the same incident, the maximum limit of our liability shall not exceed the highest limit applicable to any one auto. In no event shall the limit of liability of two or more motor vehicles or two or more policies be added together, combined, or stacked to determine the limit of insurance coverage available to you or any "insured."

ADDITIONAL COVERAGES

AGREEMENT: WE WILL PROVIDE THE INSURANCE DESCRIBED IN EACH OF THE FOLLOWING ADDITIONAL COVERAGES ONLY IF INDICATED IN THE DECLARATIONS AND PREMIUM IS PAID.

ADDITIONAL CUSTOM EQUIPMENT COVERAGE

If you pay the premium for this coverage, we will pay for sudden, direct, and accidental loss to "custom equipment" on "your covered auto". This coverage applies only if you have purchased both Comprehensive Coverage and Collision Coverage for that "your covered auto" and the loss is covered under one of those coverages. This coverage applies in addition to any coverage automatically provided for "custom equipment" under Comprehensive Coverage or Collision Coverage.

RENTAL REIMBURSEMENT COVERAGE

If you pay the premium for this coverage, we will reimburse rental charges incurred when you rent an auto from a rental agency or auto repair shop due to a loss to "your covered auto" that has Rental Reimbursement Coverage under this policy. This coverage applies only if you have purchased both Collision and Comprehensive Coverage for that "your covered auto" and the loss is covered under one of those coverages.

Additional fees or charges for insurance, damage waivers, optional equipment, fuel, or accessories are not covered.

The maximum we will pay is the limit shown in the Declarations not exceeding the per day limit for any day.

If Rental Reimbursement Coverage applies, no other coverage under this policy for rental expenses will apply.

Rental charges will be reimbursed beginning:

- A. When "your covered auto" cannot be driven due to a loss; or
- B. If "your covered auto" can be driven
 - 1. when an auto repair shop is scheduled to begin repairs on "your covered auto"; or
 - 2. when you deliver "your covered auto" to a location agreed to by us at a time no earlier than the time agreed to by us:

and ending the earliest of:

- A. when "your covered auto" has been returned to you;
- B. when "your covered auto" has been repaired;
- C. when "your covered auto" has been replaced;
- D. 72 hours after we make an offer to settle the loss if "your covered auto" is deemed by us to be a total loss; or

- E. when you incur the maximum limit shown in the Declarations worth of rental charges.

You must provide us written proof of your rental charges to be reimbursed.

LOAN/LEASE PAYOFF COVERAGE

If you pay the premium for this coverage, and the "your covered auto" for which this coverage was purchased is deemed by us to be a total loss, we will pay, in addition to any amounts otherwise payable under Part D – Coverage for Damage to Your Auto, the difference between:

- 1. the actual cash value of the "your covered auto" at the time of the total loss; and
- 2. any greater amount the owner of the "your covered auto" is legally obligated to pay under a written loan or lease agreement to which the "your covered auto" is subject at the time of the total loss, reduced by:
 - a. unpaid finance charges or refunds due to the owner for such charges;
 - b. excess mileage charges or charges for wear and tear;
 - c. charges for extended warranties or refunds due to the owner for extended warranties;
 - d. charges for credit insurance or refunds due to the owner for credit insurance;
 - e. past due payments and charges for past due payments; and
 - f. collection or repossession expenses.

However, our payment under this coverage shall not exceed the limit of liability shown in the Declarations. The limit of liability is a percentage of the actual cash value of the "your covered auto" at the time of the loss.

This coverage applies only if you have purchased both Comprehensive Coverage and Collision Coverage for that "your covered auto" and the loss is covered under one of those coverages.

All other provisions of the policy apply.

In Witness Whereof, we have caused this policy to be executed and attested, but this policy shall not be valid unless countersigned by our authorized representative.

[ MAPFRE | INSURANCE®]

[Robert E. McKenna]

Senior Vice President and Treasurer